

Never-Filed Formally Conforming but Substantively Incomplete Petition

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-SUMMARY-DENIAL-NEVER-FILED

Document code: B04

Hypothetical date: 2026-04-01

Conforming petition and caption

The filing identifies the parties, originating action, relief, issues, and Rule 21 posture and is accepted as technically complete.

This package has a complete caption, parties, originating action, requested relief, issues, service record, and trial-judge-copy certification. Its essential-materials index includes the public August 21 letter, challenged March 25 order, and preservation orders, and it is tendered on April 1 before the 5:00 p.m. production deadline. It omits the public memorandum and privilege-log counterparts and item-level comparison, a merits-proof gap that does not prevent technical acceptance.

Requested writ

Cinder Lake seeks to vacate categorical waiver and production, presenting a facially proper prayer for narrow relief.

The prayer identifies categorical waiver and complete production and proposes document-specific remand. It is sufficiently definite for the clerk to accept and for the Court to adjudicate. Only a judge can determine whether the supporting materials establish the demanding right asserted. The requested disposition is clear even though the accompanying record does not connect the claimed protected materials to the public letter with enough specificity to prove the premise.

Questions and reasons

The petition invokes Rule 502(a), Cheney, and the risk of compelled disclosure in a recognizable merits presentation.

The petition names Rule 502(a), the communications-facts distinction, Cheney, and the disclosure deadline. It includes the public letter so the alleged disclosure can be read, but omits the public memorandum and log counterparts and the item-level evidence needed to compare that disclosure with the materials claimed as protected. The clerk may accept the organized presentation while leaving the clear-right assessment wholly with the panel.

Chronology

It supplies the district order, reconsideration, stay efforts, and production deadline, satisfying basic factual-form requirements.

The chronology accurately lists the August 21 letter, district order, reconsideration, stay motion, and April 1 deadline. It supplies enough dates to explain posture, and the included letter shows the public words on which the waiver ruling rests. Dates and text alone, however, do not establish what protection applies to each compelled communication, draft, work-product item, or attachment.

Formal essential-materials index

The index lists the public August 21 letter, challenged order, and preservation filings and includes the materials required for technical acceptance.

The essential-materials index contains the public response letter, challenged order, and preservation orders and therefore passes the Rule 21 completeness check. It omits the public memorandum and privilege-log counterparts, along with evidence comparing the twenty logged items and attachments to what the letter disclosed. The panel evaluates the consequence of that evidentiary choice after acceptance; the package is procedurally usable yet substantively too thin for the extraordinary relief Cinder Lake requests.

Challenged order

The March 25 provisions are included and establish what relief is sought.

The included order establishes the categorical reasoning and deadline with precision, and the included letter permits direct review of the alleged disclosure. A court can identify the requested target and compare the order with the public words. What the selected materials do not establish is whether each compelled communication, draft, work-product item, and attachment is protected or sufficiently related to those words to make the asserted right clear and indisputable.

Reconsideration record

The motion and denial are included to show the district court considered the objection.

The reconsideration materials demonstrate that Cinder Lake presented its legal objection below and requested document-specific alternatives. They support appropriateness and chronology, while the separately included public letter establishes what Cinder Lake disclosed. Those materials do not describe the protected corpus item by item or supply the omitted public memorandum and log counterparts, so preservation history cannot fill the substantive evidentiary gap.

District-stay record

The emergency request and denial establish the immediate posture.

The district-stay filings show that confidentiality remained threatened after reconsideration and that ordinary district protection was unavailable. That record may support inadequacy, and the included letter permits review of the alleged disclosure. It does not establish the protected character and comparative content of the twenty items and attachments, so the court need not invite an answer simply because urgency and one Cheney element are documented.

Service on Calder

A certificate shows service on the respondent through the designated channel.

Calder is properly served through the designated channel on April 1 before the 5:00 p.m. production deadline, satisfying the filing requirement. Service enables notice; it does not oblige Calder to answer unless the court separately issues a response order. The certificate therefore establishes completed service while leaving any answer obligation contingent on a judicial invitation.

Trial-judge copy

Counsel certifies that the petition package was provided to the originating judge.

The petition, public letter, challenged order, and preservation materials are provided to the trial judge, and counsel says so expressly. That certification completes the Rule 21 filing package. Any judicial concern about missing comparative evidence concerns the merits showing, not failure to provide the judge's copy. The certification closes the intake checklist without predicting how the court will assess substantive sufficiency.

Comparative evidence omitted

The August 21 response letter is included, but the public memorandum and privilege-log counterparts and item-level evidence needed for comparison are not.

The public response letter permits the panel to identify the words disclosed. The selected record does not show how each of the twenty logged communications, drafts, work-product items, and attachments differs from those words or why each is protected. Because Cinder Lake bears the burden to establish its claims, the missing comparison prevents a clear-and-indisputable-right finding on the petitioner's characterization alone.

Missing context

The public counterparts and item-level proffer needed to distinguish public conclusions from the claimed protected corpus are omitted.

Without the public memorandum and log counterparts or an item-level proffer, the court cannot tell which categories describe communications, which reflect counsel's work product, and which concern discoverable underlying evidence. The missing comparison concerns substantive proof, not the completeness of the filing checklist. Its absence prevents Cinder Lake from carrying the privilege and extraordinary-relief burdens on the materials it chose to present.

Mandamus showing

Without decisive comparative evidence of the protected character and scope of the compelled items, the filing cannot establish a clear and indisputable right even though its form is compliant.

Cheney places the burden on the petitioner to establish the right clearly. A conforming package may be denied summarily when the materials chosen by the petitioner do not support that showing. The court need not order Calder to supply the missing evidence or conduct oral argument to determine that the petitioner's own presentation is insufficient.

Accepted but incomplete on the merits

Technical acceptance does not imply substantive sufficiency, invite an answer, or entitle the petitioner to further proceedings.

Acceptance means only that this petition may be docketed and considered under Rule 21. It does not create an answer deadline, guarantee argument, or preclude summary denial. The omitted comparative protected-material evidence bears on whether Cinder Lake has proved a clear and indisputable right, not on caption, essential materials, service, or delivery to the trial judge.

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